

## 23SMCV02511 23SMCV02511

County: los-angeles

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### TENTATIVE RULING

Plaintiffs Harry Thomas Hutcherson and Lorna Hutcherson's Motion for New Trial or, in the Alternative, Additur is DENIED.

Plaintiffs Harry Thomas Hutcherson and Lorna Hutcherson to give notice.

### REASONING

Plaintiffs Harry Thomas Hutcherson and Lorna Hutcherson ("Plaintiffs") move the Court for a new trial or, in the alternative, additur on the grounds that the verdict is against the weight of the evidence, the damages are inadequate, and the Court erred in failing to read Defendants' stipulation to admit liability to the jury. The Court notes that Plaintiffs filed a Notice of Appeal of the judgment on July 14, 2026, but it is "established that a motion for a new trial is collateral to the judgment and may proceed despite an appeal from the judgment." (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 191.)

Code of Civil Procedure section 657 sets forth the grounds upon which a verdict may be vacated, in whole or in part, and a new or further trial granted on all or part of the issues. "The determination of a motion for a new trial rests so completely within the court's discretion that its action will not be disturbed unless a manifest and unmistakable abuse of discretion clearly appears." (Jiminez v. Sears, Roebuck & Co. (1971) 4 Cal.3d 379, 387.)

The evidence at trial showed that Plaintiff Harry Thomas Hutcherson was sideswiped by Defendant Carlos Harding as Hutcherson was riding a bike, and when he visited the hospital after the accident on the same day, the doctor told him to go home and rest after giving him a boot to wear. (Opp'n, Mendoza Decl. ¶¶ 3, 5, Exs. B, D.) Plaintiff saw additional medical providers on a lien basis and received treatment. This action came on for trial and resulted in a jury verdict on May 14, 2026, wherein the jury found that Plaintiff Harry Thomas Hutcherson had suffered \$7,000 in past economic loss, \$6,000 in past noneconomic loss, and \$0 in future noneconomic loss, while also finding that Plaintiff Lorna Hutcherson had suffered \$0 in harm as to her loss of consortium claim.

While the evidence showed that Plaintiff had received treatment on his lower back, Plaintiff's expert at trial indicated that he was unaware of Plaintiff's prior injuries to his lower back before the subject accident, and he told the jury that Plaintiff's counsel had not provided any prior medical records to the expert. (Opp'n, Mendoza Decl. ¶ 3, Ex. B.) The evidence showed that Plaintiff had preexisting back pain dating to 2012, and Defendants Precious Memories Limo, LLC, Jolie Limo, LLC, and Carlos Harding ("Defendants")'s experts testified that spinal imaging showed preexisting issues before the accident. (Opp'n, Mendoza Decl. ¶ 7, Ex. F.) Defendants' expert also testified that the surgery performed to Plaintiff's lower back was not reasonable or necessary, and the lumbar injection was also not diagnostic or reasonable. (Opp'n, Mendoza Decl. ¶ 8, Ex. G.)

As to Plaintiff's ankle treatment, the initial MRI did not show a ligament tear or injury, and a re-read of the MRI determining that surgery was necessary was not credible, as Defendants' expert testified that the surgery performed is rarely done even for complete ligament tears, which did not occur here, and Plaintiff's expert suffered from credibility issues that presumably affected the jury's perception of his testimony. (Opp'n, Mendoza Decl. ¶¶ 5, 6, Exs. D, E.) As to the morel-lavallee lesion, Defendants' expert testified there is no pain management for such a lesion, and the liposuction performed was done for cosmetic purposes. (Opp'n, Mendoza Decl. ¶ 9, Ex. H.) Further, there was no specific testimony at trial that connected the medical bills to the accident, i.e., Plaintiff showed treatment for certain conditions, but the jury did not link the treatment to harm sustained in the accident because Plaintiff failed to provide evidence as to this element.

Insofar as Plaintiffs contend that it was improper to award \$0 in damages for loss of consortium to Plaintiff Lorna Hutcherson, it is not a requirement that one be awarded damages for loss of consortium if the plaintiff who suffered the primary harm was damaged, even if a loss of consortium claim flows from the other plaintiff's harm. In other words, Plaintiffs were still required to prove the elements of loss of consortium, and the jury could reasonably conclude there were no damages here.

Finally, Plaintiffs argue that the Court's failure to read the stipulation of liability to the jury was improper. The Court advised the parties that the stipulation could be redacted in a manner that would warrant reading it to the jury, but Plaintiffs did not submit such a stipulation. (Opp'n, Mendoza Decl. ¶ 3, Ex. B.) Regardless, it was made clear to the jury during opening statements that Defendants stipulated to being responsible for the accident but contested the nature and extent of injuries suffered by Plaintiffs (Opp'n, Mendoza Decl. ¶ 2, Ex. A), so the reading of the stipulation would not have changed the result. In short, Plaintiffs have failed to show that a new trial is warranted. Accordingly, Plaintiffs Harry Thomas Hutcherson and Lorna Hutcherson's Motion for New Trial or, in the Alternative, Additur is DENIED.